IN FEBRUARY 2015, THE CUSTODIAN CATEGORISED ALL PROPERTIES OWNED BY HAMIDULLAH KHAN AS 'ENEMY PROPERTY' AND ASKED THE STATE TO TAKE POSSESSION

Mansur Ali Khan 'Tiger' Pataudi, Saif's father.

The letter informed Saif that since Nawab Hamidullah Khan's eldest daughter Abida had migrated to Pakistan and was the heir apparent, all of the Bhopal properties would be liable to be declared Enemy Properties. The Custodian asked Saif to furnish the details of the properties, but before Saif could do that, the Custodian issued a certificate in February 2015 under section 5 of the Act, categorising all the properties owned by Hamidullah Khan as 'Enemy Properties'. Many of these properties have either been sold or are not in possession of members of the erstwhile ruling family. The Custodian also asked the MP government to take possession of these properties. The same year, Saif, his mother, actress Sharmila Tagore, and his aunt Sabiha Sultan filed a writ appeal in the MP High Court, challenging the Custodian's order and obtained a stay on it.

On December 13, 2024, the MP High Court, while disposing of a bunch of writ appeals filed by members of the erstwhile royalty, lifted that 2015 stay, thus potentially clearing the way for their acquisition under the Enemy Property Act. In his order, Justice Vivek Agarwal stated that the amended Enemy Property Act 2017 provides a statutory mechanism for addressing disputes and asked the petitioners to approach the joint secretary, Union ministry of home affairs—designated as an appellate authority (who is empowered by the Centre to deal with appeals) in such cases—within 30 days. Informed sources said that Saif Ali Khan filed an application on January 8. When contacted by INDIA TODAY, Saif's advocate Aishvary Vikram refused to comment on the matter.

ROYAL COUNTERPOINT

The high-profile Bhopal state was second in status only to Hyderabad among Muslim princely states and was accorded a 19-gun salute by the British. The last Nawab of Bhopal, Hamidullah Khan, had three daughters. The eldest daughter, Abida Sultan, migrated to Pakistan in 1950 while her father was the designated Nawab. She continued to stay there and when Hamidullah died in February 1960, her younger sister, Sajida, was recognised by the Union government as the 'ruler of Bhopal'. This was because even after independence in 1947, erstwhile rulers of princely states enjoyed general privileges such as a privy purse, vehicles without registration plates and no cap on the number of firearms they could possess. Some erstwhile rulers also had specific privileges which they had negotiated with the Union of India and had them included in the merger agreement—a unique document signed by each ruler by which they surrendered their sovereignty to the Union after independence. These privileges continued till 1971, when they were abolished by then prime minister Indira Gandhi's government.

In the writ petition filed by Saif, his mother and his aunt, it is stated that the Custodian was unaware of the facts of the case. In their defence, the petitioners said that since the Union government had recognised Sajida Sultan as the ruler, Abida had no claim over the Bhopal properties. Further, the petition claimed that the Custodian's order amounted to a violation of the merger agreement signed between the Union government and the Nawab, which stated that the personal property of the ruler would never be questioned and not attract even revenue and forest laws.

ENEMY OR RIGHTFUL OWNER

How two sides argue over the Bhopal royal properties

THE GOVERNMENT'S POSITION

- Since Abida Sultan, eldest daughter and heir apparent of the last nawab of Bhopal Hamidullah Khan, had migrated to Pakistan in 1950, all the Bhopal properties can be declared 'enemy properties'
- Such properties can be taken over by the Custodian of Enemy Property, and heirs can't inherit them under the Enemy Property (Amendment and Validation) Act 2017
- Abida's sister Sajida Sultan, who owned the properties, is Saif Ali Khan's grandmother
- A 2015 certificate by the Custodian listing the properties as 'enemy properties' was contested in court by Saif and his relatives, and a stay obtained
- That stay was lifted in December 2024 and the royals have filed an appeal

SAIF & OTHERS' ARGUMENT

- Saif and his relatives contend that as Union government had recognised Sajida as 'ruler' in 1960, Abida Sultan had no claim over the properties